THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT-I), CHANDIGARH

CA (CAA) No.7/Chd/Hry/2025
(1st Motion)

Under Sections 230 to 232 read with other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF AMALGAMATION:

1. ADONCIA BUILDERS & DEVELOPERS PRIVATE LIMITED

(CIN: U45201HR2006PTC099877) (PAN: AAFCA6764P)
A COMPANY INCORPORATED
UNDER THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
1ST FLOOR, DLF GATEWAY TOWER,
R BLOCK, DLF CITY PHASE-III, GURUGRAM – 122002, HARYANA.

… APPLICANT NO. 1 / TRANSFEROR COMPANY NO. 1

AND

2. AMANDLA BUILDERS & DEVELOPERS PRIVATE LIMITED

(CIN: U45201HR2006PTC099873) (PAN: AAFCA7055D)
A COMPANY INCORPORATED
UNDER THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
1ST FLOOR, DLF GATEWAY TOWER,
R BLOCK, DLF CITY PHASE-III, GURUGRAM – 122002, HARYANA

… APPLICANT NO. 2 / TRANSFEROR COMPANY NO. 2

AND

3. BERIT BUILDERS & DEVELOPERS PRIVATE LIMITED

(CIN: U45201HR2006PTC099878) (PAN: AACCB8372P)
A COMPANY INCORPORATED
UNDER THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
1ST FLOOR, DLF GATEWAY TOWER,
R BLOCK, DLF CITY PHASE-III, GURUGRAM – 122002, HARYANA

… APPLICANT NO. 3 / TRANSFEROR COMPANY NO. 3

AND

4. INVECON PRIVATE LIMITED

(CIN: U68100HR1972PTC100362) (PAN: AABCI0423R)
A COMPANY INCORPORATED
UNDER THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
1ST FLOOR, DLF GATEWAY TOWER,
R BLOCK, DLF CITY PHASE-III, GURUGRAM – 122002, HARYANA

… APPLICANT NO. 4 / TRANSFEROR COMPANY NO. 4

AND

5. MANINI REAL ESTATES PRIVATE LIMITED

(CIN: U45201HR2006PTC099882) (PAN: AAECM6466B)
A COMPANY INCORPORATED
UNDER THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
1ST FLOOR, DLF GATEWAY TOWER,
R BLOCK, DLF CITY PHASE-III, GURUGRAM – 122002, HARYANA

… APPLICANT NO. 5 / TRANSFEROR COMPANY NO. 5

AND

6. MURDOCK BUILDERS & DEVELOPERS PRIVATE LIMITED

(CIN: U45201HR2006PTC099879) (PAN: AAECM6467A)
A COMPANY INCORPORATED
UNDER THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
1ST FLOOR, DLF GATEWAY TOWER,
R BLOCK, DLF CITY PHASE-III, GURUGRAM – 122002, HARYANA

… APPLICANT NO. 6 / TRANSFEROR COMPANY NO. 6

AND

7. PREWITT BUILDERS & CONSTRUCTIONS PRIVATE LIMITED

(CIN: U45201HR2006PTC099872) (PAN: AADCP8657L)
A COMPANY INCORPORATED
UNDER THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
1ST FLOOR, DLF GATEWAY TOWER,
R BLOCK, DLF CITY PHASE-III, GURUGRAM – 122002, HARYANA

… APPLICANT NO. 7 / TRANSFEROR COMPANY NO. 7

AND

8. UNI INTERNATIONAL PRIVATE LIMITED

(CIN: U68100HR1993PTC100079) (PAN: AAACU6491L)
A COMPANY INCORPORATED
UNDER THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
1ST FLOOR, DLF GATEWAY TOWER,
R BLOCK, DLF CITY PHASE-III, GURUGRAM – 122002, HARYANA

… APPLICANT NO. 8 / TRANSFEROR COMPANY NO. 8

With

9. HIGHVISTA BUILDCON PRIVATE LIMITED

(CIN: U68100HR1979PTC099851) (PAN: AABCV7648B)
A COMPANY INCORPORATED
UNDER THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
1ST FLOOR, DLF GATEWAY TOWER,
R BLOCK, DLF CITY PHASE-III, GURUGRAM – 122002, HARYANA

… APPLICANT NO. 9/ TRANSFEREE COMPANY

Order delivered on: 25.02.2025

Coram: HON'BLE SH. HARNAM SINGH THAKUR, MEMBER (JUDICIAL)
HON'BLE SH. ASHISH VERMA, MEMBER (TECHNICAL)

Present: -

For the Applicant: Dr. U.K Chaudhary, Senior Advocate
Mr. Pulkit Goyal, Advocate
Ms. Manisha Chaudhary, Advocate
Ms. Manisha Sharma, Advocate
Mr. Mansumyer Singh, Advocate

Per: Sh. Harnam Singh Thakur, Member (Judicial)
Sh. Ashish Verma, Member (Technical)

ORDER

This is a Joint First Motion Application filed by the Applicant Companies namely; **Adoncia Buiders & Developers Private Limited** (hereinafter referred to as the or "Applicant Company No.1 or Transferor Company No.1"), **Amandala Buiders & Developers Private Limited** (hereinafter referred to as the "Applicant Company No.2 or Transferor Company No.2"), **Berit Buiders & Developers Private Limited** (hereinafter referred to as the "Applicant Company No.3 or Transferor Company No.3"), **Invecon Private Limited** (hereinafter referred to as the "Applicant Company No.4 or Transferor Company No.4"), **Manini Real Estates Private Limited** (hereinafter referred to as the "Applicant Company No. 5 or Transferor Company No.5") **Murdock Buiders & Developers Private Limited** (hereinafter referred to as the "Applicant Company No.6 or Transferor Company No.6"), **Prewitt Buiders & Constructions Private Limited** (hereinafter referred to as the "Applicant Company No.7 or Transferor Company No.7"), **Uni International Private Limited** (hereinafter referred to as the "Applicant Company No.8 or Transferor Company No.8") and **Highvista Buildcon Private Limited** (hereinafter referred to as the "Applicant Company No.9 or Transferee Company) (hereinafter collectively referred to as the "Applicant Companies") under the provisions of Section 230

to 232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (hereinafter referred as the "Rules") seeking Orders/directions to dispense with the convening of the meetings of the Equity Shareholders, secured and unsecured creditors of the Applicant Companies and dispense with the requirement of issue and publication of notice for the same and issue Notices to the Central Government; Registrar of Companies, NCT of Delhi and Haryana; Income Tax Department and Official Liquidator. A copy of the Scheme has been annexed as Annexure A-28 of the application.

2. The registered offices of the Applicant Companies are situated in the State of Haryana and, therefore, this Application is under the territorial jurisdiction of this Bench.

FACTS OF THE CASE

3. The Facts of the case, as stated in the Application, are as below:

i. **ADONCIA BUILDERS & DEVELOPERS PRIVATE LIMITED ("Applicant No. 1/Transferor Company No. 1")** was incorporated as a Private Limited Company on 07.03.2006 under the provisions of the Companies Act, 1956. The Transferor Company No. 1 by way of Special Resolution, altered the provisions of its Memorandum of Association with respect to change of place of its Registered Office by shifting it from the State of Delhi to the State of Haryana and such alteration has been registered vide Certificate of Registration dated 13.12.2021, issued by the Registrar of Companies (ROC), NCT of Delhi & Haryana, New Delhi. Further, on the recommendation of the Board of Directors, the Registered Office of the Company shifted from 416, 4th Floor, DLF Qutab Plaza Complex, DLF City, Phase-I, Gurugram-122002 to 1st Floor, DLF Gateway Tower, R Block, DLF City Phase-III, Gurugram-122002 (Haryana) w.e.f. 12.07.2024. The Permanent Account Number (PAN) of the Transferor Company No. 1 is AAFCA6764P and

e-mail address of the Transferor Company No. 1 is corporateaffairs@dlf.in. The equity share capital of the Transferor Company No. 1 is held by Prewitt Builders & Constructions Private Limited, Berit Builders & Developers Private Limited and Amandla Builders & Developers Private Limited along with its nominees. The Transferor Company No. 1 is a Subsidiary Company of DLF Limited, the Holding Company, in terms of Section 2(87)(i) of the Companies Act, 2013. DLF Limited is not part of the present Scheme of Amalgamation.

ii. The Transferor Company No. 1 is engaged in the real estate business in terms of its Memorandum of Association. The Main Objects of Transferor Company No. 1, as set-out in Clause III of the Memorandum of Association are, as follows:

- To purchase any land, plot(s) of land or immovable property or any right or interest therein either singly or jointly or in Partnership with any person(s) or Body corporate or partnership Firm and to develop and construct thereon residential, commercial complex or complex(es) either singly or jointly or in partnership as aforesaid, comprising offices for sale or self use or for earning rental income thereon by letting out individual units comprised in such building(s).
- To purchase any movable or immovable property including industrial, commercial, residential, or farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere within the Doman of India, to divide the same into suitable plots, and to rent or sell the plots for building/constructing residential houses, bungalows, business premises, and colonies and rent or sell the same and realize cost in lumpsum or easy installments or by hire purchase system and otherwise.
- To purchase, sell and otherwise to carry on the business such as builders, contractors, architects, engineers, Estate agents, decorators and surveyors.
- To purchase for resale and to trade in land and house and other immoveable property of any tenure and any interest therein, and to create, sell and deal in freehold and leasehold ground rents, and to deal in trade by way of sale, or otherwise with land and house property and any other immovable property whether real or personal.
- To construct, execute, carryout, equip, support, maintain, operate, improve, work, develop, administer, manage, control and superintend within or outside the country any where in the world all kinds of works, public or otherwise, buildings, houses and other constructions or conveniences of all kinds, which expression in this memorandum includes roads, railways, and tramways, docks, harbours, Piers, wharves, canals, serial runways and hangers, airports, reservoirs, embankments, irrigations, reclamation, improvements, sewage, sanitary, water, gas, electronic light, power supply works, and hotels, cold storages, warehouses, cinema houses, markets, public and other buildings and all other works and conveniences of public or private utility, to apply for purchase or

otherwise acquire any contracts, decrease, concessions, for or in relation to the construction, execution, carrying out equipment, improvement, administration, or control of all such works and conveniences as aforesaid and to undertake, execute, carry out, dispose of or otherwise turn to account the same.

A certified true copy of the Memorandum and Articles of Association of the Transferor Company No. 1 along with master data is being annexed and marked as **ANNEXURE A-1 (COLLY).**

iii. The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 1 as on 31st March 2024 is as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORIZED SHARE CAPITAL	
150,000 Equity Shares of Rs. 10/- each	15,00,000.00
TOTAL	**15,00,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	
1,10,000 Equity Shares of Rs. 10/- each fully paid-up.	11,00,000.00
TOTAL	**11,00,000.00**

iv. There has been no change in the share capital structure of the Transferor Company No. 1 since 1st April 2024. The Transferor Company No. 1 has not issued any Compulsorily Convertible Debentures.

v. The financial position of the Transferor Company No. 1 as on 31st March 2024 and 31st March 2023 on the basis of the Audited Accounts is as under:

(Rs. in Lakhs)

PARTICULARS	AMOUNT (31.03.2024)	AMOUNT (31.03.2023)

EQUITY & LIABILITIES		
Equity Share Capital	11.00	11.00
Other Equity	(35.07)	(30.50)
Non-Current Liabilities	-	-
Current Liabilities	50.55	41.18
Total	**26.48**	**21.68**
ASSETS		
Non-Current Assets	21.10	21.00
Current Assets	5.38	0.68
Total	**26.48**	**21.68**

The certified true copy of the Audited Financial Statements of Transferor Company No. 1 as on 31st March 2024 along with unaudited financial results/Limited Review Report for the quarter ended 30th September 2024 are annexed as **ANNEXURE A-2 (COLLY).** A list of directors of the Transferor Company No. 1 is annexed as **ANNEXURE A-3**.

vi. **AMANDLA BUILDERS & DEVELOPERS PRIVATE LIMITED** ("**Applicant No. 2/Transferor Company No. 2**") was incorporated as a Private Limited Company on 09.03.2006 under the provisions of the Companies Act, 1956. The Transferor Company No. 2 by way of Special Resolution, altered the provisions of its Memorandum of Association with respect to change of place of its Registered Office by shifting it from the State of Delhi to the State of Haryana and such alteration has been registered vide Certificate of Registration dated 13.12.2021, issued by the Registrar of Companies (ROC), NCT of Delhi & Haryana, New Delhi. Further, on the recommendation of the Board of Directors, the Registered Office of the Company shifted from 416, 4th Floor, DLF Qutab Plaza Complex, DLF City, Phase-I, Gurugram-122002 to 1st Floor, DLF Gateway Tower, R Block, DLF City Phase-III, Gurugram-122002 (Haryana) w.e.f. 12.07.2024. The Permanent Account Number (PAN) of the Transferor Company No. 2 is AAFCA7055D and e-mail address of the Transferor Company No. 2 is corporateaffairs@dlf.in. The equity share

capital of the Transferor Company No. 2 is held by Murdock Builders & Developers Private Limited, Manini Real Estates Private Limited and Adoncia Builders & Developers Private Limited along with its nominees. The Transferor Company No. 2 is a Subsidiary Company of DLF Limited, the Holding Company, in terms of Section 2(87)(i) of the Companies Act, 2013. DLF Limited is not part of the present Scheme of Amalgamation.

vii. The Transferor Company No. 2 is engaged in the real estate business in terms of its Memorandum of Association. The Main Objects of Transferor Company No. 2, as set-out in Clause III of the Memorandum of Association are, as follows:

- To purchase any land, plot(s) of land or immovable property or any right or interest therein either singly or jointly or in Partnership with any person(s) or Body corporate or partnership Firm and to develop and construct thereon residential, commercial complex or complex(es) either singly or jointly or in partnership as aforesaid, comprising offices for sale or self-use or for earning rental income thereon by letting out individual units comprised in such building(s).
- To purchase any movable or immovable property including industrial, commercial, residential, or farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere within the Doman of India, to divide the same into suitable plots, and to rent or sell the plots for building/constructing residential houses, bungalows, business premises, and colonies and rent or sell the same and realize cost in lumpsum or easy installments or by hire purchase system and otherwise.
- To purchase, sell and otherwise to carry on the business such as builders, contractors, architects, engineers, Estate agents, decorators and surveyors.
- To purchase for resale and to trade in land and house and other immoveable property of any tenure and any interest therein, and to create, sell and deal in freehold and leasehold ground rents, and to deal in trade by way of sale, or otherwise with land and house property and any other immovable property whether real or personal.
- To construct, execute, carryout, equip, support, maintain, operate, improve, work, develop, administer, manage, control and superintend within or outside the country anywhere in the world all kinds of works, public or otherwise, buildings, houses and other constructions or conveniences of all kinds, which expression in this memorandum includes roads, railways, and tramways, docks, harbours, piers, wharves, canals, serial runways and hangers, airports, reservoirs, embankments, irrigations, reclamation, improvements, sewage, sanitary, water, gas, electronic light, power supply works, and hotels, cold storages, warehouses, cinema houses, markets, public and other buildings and all other works and conveniences of public or private utility, to apply for purchase or otherwise acquire any contracts, decrease, concessions, for or in relation to the construction, execution, carrying out equipment, improvement, administration, or control

of all such works and conveniences as aforesaid and to undertake, execute, carry out, dispose of or otherwise turn to account the same.

A certified true copy of Memorandum and Articles of Association of the Transferor Company No. 2 along with master data is being annexed and marked as **ANNEXURE A-4 (COLLY).**

viii. The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 2 as on 31st March 2024 is as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORIZED SHARE CAPITAL	
1,50,000 Equity Shares of Rs 10/- each	15,00,000.00
TOTAL	**15,00,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	
1,10,000 Equity Shares of Rs. 10/- each fully paid-up	11,00,000.00
TOTAL	**11,00,000.00**

ix. There has been no change in the share capital structure of the Transferor Company No. 2 since 1st April 2024. The Transferor Company No. 2 has not issued any Compulsorily Convertible Debentures.

x. The financial position of the Transferor Company No. 2 as on 31st March 2024 and 31st March 2023 on the basis of the Audited Accounts is as under:

(Rs. in Lakhs)

PARTICULARS	AMOUNT (31.03.2024)	AMOUNT (31.03.2023)
EQUITY & LIABILITIES		
Equity Share Capital	11.00	11.00
Other Equity	(64.40)	(57.19)
Non-Current Liabilities	-	-
Current Liabilities	84.75	72.89
Total	**31.35**	**26.70**
ASSETS		
Non-Current Assets	26.10	26.00
Current Assets	5.25	0.70
Total	**31.35**	**26.70**

The certified true copy of the Audited Financial Statements of Transferor Company No. 2 as on 31st March 2024 along with unaudited financial results/Limited Review Report for the quarter

ended 30th September 2024 are annexed as **ANNEXURE A-5 (COLLY).** A copy of the list of directors of the Transferor Company No. 2 is annexed as **ANNEXURE A-6**.

xi. **BERIT BUILDERS & DEVELOPERS PRIVATE LIMITED** ("**Applicant No. 3/Transferor Company No. 3**") was incorporated as a Private Limited Company on 07.03.2006. The Transferor Company No. 3 by way of Special Resolution, altered the provisions of its Memorandum of Association with respect to change of place of its Registered Office by shifting it from the State of Delhi to the State of Haryana and such alteration has been registered vide Certificate of Registration dated 13.12.2021, issued by the Registrar of Companies (ROC). Further, on the recommendation of the Board of Directors, the Registered Office of the Company shifted from 416, 4th Floor, DLF Qutab Plaza Complex, DLF City, Phase-I, Gurugram-122002 to 1st Floor, DLF Gateway Tower, R Block, DLF City Phase-III, Gurugram-122002 (Haryana) w.e.f. 12.07.2024. The Permanent Account Number (PAN) of the Transferor Company No. 3 is AACCB8372P and e-mail address of the Transferor Company No. 3 is corporateaffairs@dlf.in. The equity share capital of the Transferor Company No. 3 is held by Prewitt Builders & Constructions Private Limited, Adoncia Builders & Developers Private Limited and Murdock Builders & Developers Private Limited along with its nominees. The Transferor Company No. 3 is a Subsidiary Company of DLF Limited, the Holding Company, in terms of Section 2(87)(i) of the Companies Act, 2013. DLF Limited is not part of the present Scheme of Amalgamation.

xii. The Transferor Company No. 3 is engaged in the real estate business in terms of its Memorandum of Association. The Main Objects of Transferor Company No. 3 as set-out in Clause III of the Memorandum of Association are, as follows:

- To purchase any land, plot(s) of land or immovable property or any right or interest therein either singly or jointly or in Partnership with any person(s) or Body corporate or partnership Firm and to develop and construct thereon residential, commercial complex or complex(es) either singly or jointly or in partnership as aforesaid, comprising offices

for sale or self use or for earning rental income thereon by letting out individual units comprised in such building(s).

- To purchase any movable or immovable property including industrial, commercial, residential, or farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere within the Doman of India, to divide the same into suitable plots, and to rent or sell the plots for building/constructing residential houses, bungalows, business premises, and colonies and rent or sell the same and realize cost in lumpsum or easy installments or by hire purchase system and otherwise.
- To purchase, sell and otherwise to carry on the business such as builders, contractors, architects, engineers, Estate agents, decorators and surveyors.
- To purchase for resale and to trade in land and house and other immoveable property of any tenure and any interest therein, and to create, sell and deal in freehold and leasehold ground rents, and to deal in trade by way of sale, or otherwise with land and house property and any other immovable property whether real or personal.
- To construct, execute, carryout, equip, support, maintain, operate, improve, work, develop, administer, manage, control and superintend within or outside the country any where in the world all kinds of works, public or otherwise, buildings, houses and other constructions or conveniences of all kinds, which expression in this memorandum includes roads, railways, and tramways, docks, harbours, Piers, wharves, canals, serial runways and hangers, airports, reservoirs, embankments, irrigations, reclamation, improvements, sewage, sanitary, water, gas, electronic light, power supply works, and hotels, cold storages, warehouses, cinema houses, markets, public and other buildings and all other works and conveniences of public or private utility, to apply for purchase or otherwise acquire any contracts, decrease, concessions, for or in relation to the construction, execution, carrying out equipment, improvement, administration, or control of all such works and conveniences as aforesaid and to undertake, execute, carry out, dispose of or otherwise turn to account the same.

A certified true copy of Memorandum and Articles of Association of the Transferor Company No. 3 along with master data is being annexed and marked as **ANNEXURE A-7 (COLLY).**

xiii. The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 3 as on 31st March 2024 is as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORIZED SHARE CAPITAL	
1,50,000 Equity Shares of Rs. 10/- each	15,00,000.00
TOTAL	**15,00,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	
1,10,000 Equity Shares of Rs. 10/- each fully paid-up	11,00,000.00
TOTAL	**11,00,000.00**

xiv. There has been no change in the share capital structure of the Transferor Company No. 3 since 1st April 2024.The Transferor Company No. 3 has not issued any Compulsorily Convertible Debentures.

xv. The financial position of the Transferor Company No. 3 as on 31st March 2024 and 31st March 2023 on the basis of the Audited Accounts is as under:

(Rs. in Lakhs)

PARTICULARS	AMOUNT (31.03.2024)	AMOUNT (31.03.2023)
EQUITY & LIABILITIES		
Equity Share Capital	11.00	11.00
Other Equity	(45.97)	(40.20)
Non-Current Liabilities	-	-
Current Liabilities	65.64	55.80
Total	**30.67**	**26.60**
ASSETS		
Non-Current Assets	26.10	26.00
Current Assets	4.57	0.60
Total	**30.67**	**26.60**

The certified true copy of the Audited Financial Statements of Transferor Company No. 3 as on 31st March 2024 along with unaudited financial results/Limited Review Report for the quarter ended 30th September 2024 are annexed as **ANNEXURE A-8 (COLLY).** A copy of the list of directors of the Transferor Company No. 3 is annexed as **ANNEXURE A-9**.

xvi. **INVECON PRIVATE LIMITED** ("**Applicant No. 4/Transferor Company No. 4**") was incorporated as a Private Limited Company on 08.02.1972. The Transferor Company No. 4 by way of Special Resolution, altered the provisions of its Memorandum of Association with respect to change of place of its Registered Office by shifting it from the State of Delhi to the State of Haryana and such alteration has been registered vide Certificate of Registration dated 05.01.2022, issued by the Registrar of Companies (ROC), NCT of Delhi & Haryana, New Delhi. Further, on the recommendation of the Board of Directors, the Registered Office of the Company

shifted from 416, 4th Floor, DLF Qutab Plaza Complex, DLF City, Phase-I, Gurugram-122002 to 1st Floor, DLF Gateway Tower, R Block, DLF City Phase-III, Gurugram-122002 (Haryana) w.e.f. 12.07.2024. The Transferor Company No. 4 *vide* Special Resolution, altered the provisions of its Memorandum of Association with respect to its Objects and Certificate of Registration of Special Resolution confirming the alteration of Object Clause was issued by the ROC on 23.09.2024. The Permanent Account Number (PAN) of the Transferor Company No. 4 is AABCI0423R and e-mail address of the Transferor Company No. 4 is corporateaffairs@dlf.in. The equity share capital of the Transferor Company No. 4 is held by DLF Limited, Adoncia Builders & Developers Private Limited and Prewitt Builders & Constructions Private Limited along with its nominees. The Transferor Company No. 4 is a Subsidiary Company of DLF Limited, the Holding Company, in terms of Section 2(87)(i) of the Companies Act, 2013. DLF Limited is not part of the present Scheme of Amalgamation.

xvii. The Transferor Company No. 4 is engaged in the real estate business in terms of its Memorandum of Association. The Main Objects of Transferor Company No. 4, as set-out in Clause III of the Memorandum of Association are, as follows:

- To purchase or otherwise acquire, any land, plot(s) of land or immovable property(ies) or any right, title or interest therein either singly or jointly or in partnership with any person(s) or body corporate or partnership firm(s) and Setting up residential, commercial complexes for sale or for letting out and earning rental income there from either severally, or jointly or in partnership as aforesaid, comprising offices spaces for sale or self-use or for running business/convention centers or dealing in movable or immovable assets or Construction, Development, purchase, sell, take on lease or in exchange, hire and carry on the business of builders, civil contractors, civil engineers, decorators, surveyors, merchants and dealers in stone, sand, cement, bricks, timber, iron and steel, hardware and other building requisites, bricks and tiles and terra cotta makers, job makers, carriers, house and estate agents.
- To purchase, take on lease or in exchange, hire or otherwise acquire right, title or interest in any movable or immovable property(ies) including residential, commercial, agricultural, farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere in India or abroad, to divide the same into plots, rent out or sell the plots to the people for building

houses, bungalows, business premises and to build, construct residential houses, apartments, flats and business premises and colonies and lease, sell, transfer or dispose off the same to the public, provide after-sale service and realize cost in lump sum or easy installments or by hire purchase system or providing maintenance & allied services including safety and security of multi-storied buildings/colonies, commercial complexes, office complexes, market, shopping complexes, clubs, theatres, hospitals, factories, streets, public and private estates, cities, town, villages etc.

- To acquire by purchase, lease, exchange, or otherwise, land, buildings and hereditaments of any tenure of description situate in India or abroad, any estate or interest therein, and any rights over or connected with land so situated, and to turn the same to account as may seen expedient, and in particular by preparing building site and by constructing, reconstructing, altering, improving, decorating, finishing and maintaining offices, flats, houses, factories, warehouses, shops, retail outlets, wharves, buildings, works and conveniences of all kinds and by consolidating or connecting or sub dividing properties, and by leasing and disposing of the same or construct, execute, carryout, equip, support, maintain, operate, improve, work, develop, administer, manage, control and superintend within or outside the country anywhere in the world all kinds of works, public or otherwise, buildings, houses and other constructions.

A certified true copy of Memorandum and Articles of Association of the Transferor Company No. 4 along with master data is being annexed and marked as **ANNEXURE A-10 (COLLY).**

xviii. The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 4 as on 31st March 2024 is as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORIZED SHARE CAPITAL	
25,000 Equity Shares of Rs. 100/- each 500 Preference Shares of Rs. 100/- each	25,00,000.00 50,000.00
TOTAL	**25,50,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	
21,100 Equity Shares of Rs. 10/- each fully paid-up	21,10,00.00
TOTAL	**21,10,000.00**

xix. There has been no change in the share capital structure of the Transferor Company No. 4 since 1st April 2024. The Transferor Company No. 4 has not issued any Compulsorily Convertible Debentures.

xx. The financial position of the Transferor Company No. 4 as on 31st March 2024 and 31st March 2023 on the basis of the Audited Accounts is as under:

(Rs. in Lakhs)

PARTICULARS	AMOUNT (31.03.2024)	AMOUNT (31.03.2023)
EQUITY & LIABILITIES		
Equity Share Capital	21.10	21.10
Other Equity	(7.96)	(15.69)
Non-Current Liabilities	-	-
Current Liabilities	7,070.12	7,050.22
Total	**7,083.26**	**7,087.01**
ASSETS		
Non-Current Assets	0.91	0.65
Current Assets	7,082.35	7,086.36
Total	**7,083.26**	**7,087.01**

The certified true copy of the Audited Financial Statements of Transferor Company No. 4 as on 31st March 2024 along with unaudited financial results/Limited Review Report for the quarter ended 30th September 2024 are annexed as **ANNEXURE A-11 (COLLY).** A copy of the list of directors of the Transferor Company No. 4 is annexed as **ANNEXURE A-12**.

xxi. **MANINI REAL ESTATES PRIVATE LIMITED** ("**Applicant No. 5/Transferor Company No. 5**") was incorporated as a Private Limited Company on 09.03.2006 under the provisions of the Companies Act, 1956. The Transferor Company No. 5 by way of Special Resolution, altered the provisions of its Memorandum of Association with respect to change of place of its Registered Office by shifting it from the State of Delhi to the State of Haryana and such alteration has been registered vide Certificate of Registration dated 13.12.2021, issued by the Registrar of Companies (ROC), NCT of Delhi & Haryana, New Delhi. Further, on the recommendation of the Board of Directors, the Registered Office of the Company shifted from 416, 4th Floor, DLF Qutab Plaza Complex, DLF City, Phase-I, Gurugram-122002 to 1st Floor, DLF Gateway Tower, R Block, DLF City Phase-III, Gurugram-122002 (Haryana) w.e.f. 12.07.2024. The Permanent Account Number (PAN) of the Transferor Company No. 5 is AAECM6466B and e-mail address of the Transferor Company No. 5 is corporateaffairs@dlf.in. The equity share capital of the Transferor

Company No. 5 is held by Murdock Builders & Developers Private Limited, Amandla Builders & Developers Private Limited and Prewitt Builders & Constructions Private Limited and its nominees. The Transferor Company No. 5 is a Subsidiary Company of DLF Limited, the Holding Company, in terms of Section 2(87)(i) of the Companies Act, 2013. DLF Limited is not part of the present Scheme of Amalgamation.

xxii. The Transferor Company No. 5 is engaged in the real estate business in terms of its Memorandum of Association. The Main Objects of Transferor Company No. 5, as set-out in Clause III of the Memorandum of Association are, as follows:

xxiii. To purchase any land, plot(s) of land or immovable property or any right or interest therein either singly or jointly or in Partnership with any person(s) or Body corporate or partnership Firm and to develop and construct thereon residential, commercial complex or complex(es) either singly or jointly or in partnership as aforesaid, comprising offices for sale or self use or for earning rental income thereon by letting out individual units comprised in such building(s).

- To purchase any movable or immovable property including industrial, commercial, residential, or farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere within the Domain of India, to divide the same into suitable plots, and to rent or sell the plots for building/constructing residential houses, bungalows, business premises, and colonies and rent or sell the same and realize cost in lumpsum or easy installments or by hire purchase system and otherwise.
- To purchase, sell and otherwise to carry on the business such as builders, contractors, architects, engineers, Estate agents, decorators and surveyors.
- To purchase for resale and to trade in land and house and other immoveable property of any tenure and any interest therein, and to create, sell and deal in freehold and leasehold ground rents, and to deal in trade by way of sale, or otherwise with land and house property and any other immovable property whether real or personal.
- To construct, execute, carryout, equip, support, maintain, operate, improve, work, develop, administer, manage, control and superintend within or outside the country any where in the world all kinds of works, public or otherwise, buildings, houses and other constructions or conveniences of all kinds, which expression in this memorandum includes roads, railways, and tramways, docks, harbours, Piers, wharves, canals, serial runways and hangers, airports, reservoirs, embankments, irrigations, reclamation, improvements, sewage, sanitary, water, gas, electronic light, power supply works, and

hotels, cold storages, warehouses, cinema houses, markets, public and other buildings and all other works and conveniences of public or private utility, to apply for purchase or otherwise acquire any contracts, decrease, concessions, for or in relation to the construction, execution, carrying out equipment, improvement, administration, or control of all such works and conveniences as aforesaid and to undertake, execute, carry out, dispose of or otherwise turn to account the same.

A certified true copy of Memorandum and Articles of Association of the Transferor Company No. 5 along with master data is being annexed and marked as **ANNEXURE A-13 (COLLY).**

xxiv. The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 5 as on 31st March 2024 is as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORIZED SHARE CAPITAL	
1,50,000 Equity Shares of Rs. 100/- each	15,00,000.00
TOTAL	**15,00,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	
1,10,000 Equity Shares of Rs. 10/- each fully paid-up	11,00,000.00
TOTAL	**11,00,000.00**

xxv. There has been no change in the share capital structure of the Transferor Company No. 5 since 1st April 2024. The Transferor Company No. 5 has not issued any Compulsorily Convertible Debentures.

xxvi. The financial position of the Transferor Company No. 5 as on 31st March 2024 and 31st March 2023 on the basis of the Audited Accounts is as under:

(Rs. in Lakhs)

PARTICULARS	AMOUNT (31.03.2024)	AMOUNT (31.03.2023)
EQUITY & LIABILITIES		
Equity Share Capital	11.00	11.00
Other Equity	(58.10)	(49.53)
Non-Current Liabilities	--	--
Current Liabilities	78.71	66.98
Total	**31.61**	**28.45**

ASSETS		
Non-Current Assets	26.40	26.30
Current Assets	5.21	2.15
Total	**31.61**	**28.45**

xxvii. The certified true copy of the Audited Financial Statements of Transferor Company No. 5 as on 31st March 2024 along with unaudited financial results/Limited Review Report for the quarter ended 30th September 2024 are annexed as **ANNEXURE A-14 (COLLY).** A copy of the list of directors of the Transferor Company No. 5 is annexed as **ANNEXURE A-15**.

xxviii. **MURDOCK BUILDERS & DEVELOPERS PRIVATE LIMITED** ("**Applicant No. 6/Transferor Company No. 6**") was incorporated as a Private Limited Company on 07.03.2006 under the provisions of the Companies Act, 1956. The Transferor Company No. 6 by way of Special Resolution, altered the provisions of its Memorandum of Association with respect to change of place of its Registered Office by shifting it from the State of Delhi to the State of Haryana and such alteration has been registered vide Certificate of Registration dated 13.12.2021 issued by the Registrar of Companies (ROC), NCT of Delhi & Haryana, New Delhi. Further, on the recommendation of the Board of Directors, the Registered Office of the Company shifted from 416, 4th Floor, DLF Qutab Plaza Complex, DLF City, Phase-I, Gurugram-122002 to 1st Floor, DLF Gateway Tower, R Block, DLF City Phase-III, Gurugram-122002 (Haryana) w.e.f. 12.07.2024. The Permanent Account Number (PAN) of the Transferor Company No. 6 is AAECM6467A and e-mail address of the Transferor Company No. 6 is corporateaffairs@dlf.in. The equity share capital of the Transferor Company No. 6 is held by Manini Real Estates Private Limited, Amandla Builders & Developers Private Limited and Berit Builders & Developers Private Limited and its nominees. The Transferor Company No. 6 is a Subsidiary Company of DLF Limited, the Holding Company, in terms of Section 2(87)(i) of the Companies Act, 2013. DLF Limited is not part of the present Scheme of Amalgamation.

xxix. The Transferor Company No. 6 is engaged in the real estate business in terms of its Memorandum of Association. The Main Objects of Transferor Company No. 6, as set-out in Clause III of the Memorandum of Association are, as follows:

- To purchase any land, plot(s) of land or immovable property or any right or interest therein either singly or jointly or in Partnership with any person(s) or Body corporate or partnership Firm and to develop and construct thereon residential, commercial complex or complex(es) either singly or jointly or in partnership as aforesaid, comprising offices for sale or self use or for earning rental income thereon by letting out individual units comprised in such building(s).
- To purchase any movable or immovable property including industrial, commercial, residential, or farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere within the Domain of India, to divide the same into suitable plots, and to rent or sell the plots for building/constructing residential houses, bungalows, business premises, and colonies and rent or sell the same and realize cost in lumpsum or easy installments or by hire purchase system and otherwise.
- To purchase, sell and otherwise to carry on the business such as builders, contractors, architects, engineers, Estate agents, decorators and surveyors.
- To purchase for resale and to trade in land and house and other immoveable property of any tenure and any interest therein, and to create, sell and deal in freehold and leasehold ground rents, and to deal in trade by way of sale, or otherwise with land and house property and any other immovable property whether real or personal.
- To construct, execute, carryout, equip, support, maintain, operate, improve, work, develop, administer, manage, control and superintend within or outside the country any where in the world all kinds of works, public or otherwise, buildings, houses and other constructions or conveniences of all kinds, which expression in this memorandum includes roads, railways, and tramways, docks, harbours, Piers, wharves, canals, serial runways and hangers, airports, reservoirs, embankments, irrigations, reclamation, improvements, sewage, sanitary, water, gas, electronic light, power supply works, and hotels, cold storages, warehouses, cinema houses, markets, public and other buildings and all other works and conveniences of public or private utility, to apply for purchase or otherwise acquire any contracts, decrease, concessions, for or in relation to the construction, execution, carrying out equipment, improvement, administration, or control of all such works and conveniences as aforesaid and to undertake, execute, carry out, dispose of or otherwise turn to account the same.

  A certified true copy of Memorandum and Articles of Association of the Transferor Company No. 6 along with master data is being annexed and marked as **ANNEXURE A-16 (COLLY).**

xxx. The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferor Company No.

6 as on 31st March 2024 is as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORIZED SHARE CAPITAL	
1,50,000 Equity Shares of Rs. 100/- each	15,00,000.00
TOTAL	**15,00,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	
1,10,000 Equity Shares of Rs. 10/- each fully paid-up	11,00,000.00
TOTAL	**11,00,000.00**

xxxi. There has been no change in the share capital structure of the Transferor Company No. 6 since 1st April 2024. The Transferor Company No. 6 has not issued any Compulsorily Convertible Debentures.

xxxii. The financial position of the Transferor Company No. 6 as on 31st March 2024 and 31st March 2023 on the basis of the Audited Accounts is as under:

(Rs. in Lakhs)

PARTICULARS	AMOUNT (31.03.2024)	AMOUNT (31.03.2023)
EQUITY & LIABILITIES		
Equity Share Capital	11.00	11.00
Other Equity	(64.28)	(57.08)
Non-Current Liabilities	-	-
Current Liabilities	95.52	83.67
Total	**42.24**	**37.59**
ASSETS		
Non-Current Assets	36.88	36.79
Current Assets	5.36	0.80
Total	**42.24**	**37.59**

The certified true copy of the Audited Financial Statements of Transferor Company No. 6 as on 31st March 2024 along with unaudited financial results/Limited Review Report for the quarter ended 30th September 2024 are annexed as ANNEXURE A-17 (COLLY). A copy of the list of directors of the Transferor Company No. 6 is annexed as **ANNEXURE A-18**.

xxxiii. **PREWITT BUILDERS & CONSTRUCTIONS PRIVATE LIMITED** ("**Applicant No. 7/Transferor Company No. 7**") was incorporated as a Private Limited Company on 07.03.2006 under the provisions of the Companies Act, 1956. The Transferor Company No. 7 by way of Special Resolution, altered the provisions of its Memorandum of Association with respect to change of place of its Registered Office by shifting it from the State of Delhi to the State of Haryana and such alteration has been registered vide Certificate of Registration dated 13.12.2021, issued by the Registrar of Companies (ROC), NCT of Delhi & Haryana, New Delhi. Further, on the recommendation of the Board of Directors, the Registered Office of the Company shifted from 416, 4th Floor, DLF Qutab Plaza Complex, DLF City, Phase-I, Gurugram-122002 to 1st Floor, DLF Gateway Tower, R Block, DLF City Phase-III, Gurugram-122002 (Haryana) w.e.f. 12.07.2024. The Permanent Account Number (PAN) of the Transferor Company No. 7 is AADCP8657L and e-mail address of the Transferor Company No. 7 is corporateaffairs@dlf.in. The equity share capital of the Transferor Company No. 7 is held by Berit Builders & Developers Private Limited, Adoncia Builders & Developers Private Limited and Manini Real Estates Private Limited and its nominees. The Transferor Company No. 7 is a Subsidiary Company of DLF Limited, the Holding Company, in terms of Section 2(87)(i) of the Companies Act, 2013. DLF Limited is not part of the present Scheme of Amalgamation.

xxxiv. The Transferor Company No. 7 is engaged in the real estate business in terms of its Memorandum of Association. The Main Objects of Transferor Company No. 7, as set-out in Clause III of the Memorandum of Association are, as follows:

- To purchase any land, plot(s) of land or immovable property or any right or interest therein either singly or jointly or in Partnership with any person(s) or Body corporate or partnership Firm and to develop and construct thereon residential, commercial complex or complex(es) either singly or jointly or in partnership as aforesaid, comprising offices for sale or self use or or for earning rental income thereon by letting out individual units comprised in such

building(s).

- To purchase any movable or immovable property including industrial, commercial, residential, or farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere within the Domain of India, to divide the same into suitable plots, and to rent or sell the plots for building/constructing residential houses, bungalows, business premises, and colonies and rent or sell the same and realize cost in lumpsum or easy installments or by hire purchase system and otherwise.
- To purchase, sell and otherwise to carry on the business such as builders, contractors, architects, engineers, Estate agents, decorators and surveyors.
- To purchase for resale and to trade in land and house and other immoveable property of any tenure and any interest therein, and to create, sell and deal in freehold and leasehold ground rents, and to deal in trade by way of sale, or otherwise with land and house property and any other immovable property whether real or personal.
- To construct, execute, carryout, equip, support, maintain, operate, improve, work, develop, administer, manage, control and superintend within or outside the country any where in the world all kinds of works, public or otherwise, buildings, houses and other constructions or conveniences of all kinds, which expression in this memorandum includes roads, railways, and tramways, docks, harbours, Piers, wharves, canals, serial runways and hangers, airports, reservoirs, embankments, irrigations, reclamation, improvements, sewage, sanitary, water, gas, electronic light, power supply works, and hotels, cold storages, warehouses, cinema houses, markets, public and other buildings and all other works and conveniences of public or private utility, to apply for purchase or otherwise acquire any contracts, decrease, concessions, for or in relation to the construction, execution, carrying out equipment, improvement, administration, or control of all such works and conveniences as aforesaid and to undertake, execute, carry out, dispose of or otherwise turn to account the same.

A certified true copy of Memorandum and Articles of Association of the Transferor Company No. 7 along with master data is being annexed and marked as **ANNEXURE A-19 (COLLY).**

xxxv. The Authorised, Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 7 as on 31st March 2024 is as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORIZED SHARE CAPITAL	
1,50,000 Equity Shares of Rs. 100/- each	15,00,000.00
TOTAL	**15,00,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	
1,10,000 Equity Shares of Rs. 10/- each fully paid-up	11,00,000.00
TOTAL	**11,00,000.00**

xxxvi. There has been no change in the share capital structure of the Transferor Company No. 7 since 1st April 2024. The Transferor Company No. 7 has not issued any Compulsorily Convertible Debentures.

xxxvii. The financial position of the Transferor Company No. 7 as on 31st March 2024 and 31st March 2023 on the basis of the Audited Accounts is as under:

(Rs. in Lakhs)

PARTICULARS	AMOUNT (31.03.2024)	AMOUNT (31.03.2023)
EQUITY & LIABILITIES		
Equity Share Capital	11.00	11.00
Other Equity	(64.38)	(56.42)
Non-Current Liabilities	-	-
Current Liabilities	93.80	82.20
Total	**40.42**	**36.78**
ASSETS		
Non-Current Assets	36.10	36.00
Current Assets	4.32	0.78
Total	**40.42**	**36.78**

The certified true copy of the Audited Financial Statements of Transferor Company No. 7 as on 31st March 2024 along with unaudited financial results/Limited Review Report for the quarter ended 30th September 2024 are annexed as **ANNEXURE A-20 (COLLY).** A copy of the list of directors of the Transferor Company No. 7 is annexed as **ANNEXURE A-21**.

xxxviii. **UNI INTERNATIONAL PRIVATE LIMITED** ("**Applicant No. 8/Transferor Company No. 8**") was incorporated as a Private Limited Company on 13.09.1993 under the provisions of the Companies Act, 1956. The Transferor Company No. 8 by way of Special Resolution, altered the provisions of its Memorandum of Association with respect to change of place of its Registered

Office by shifting it from the State of Delhi to the State of Haryana and such alteration has been registered vide Certificate of Registration dated 22.12.2021, issued by the Registrar of Companies (ROC), NCT of Delhi & Haryana, New Delhi. The Transferor Company No. 8 vide Special Resolution, altered the provisions of its Memorandum of Association with respect to its Objects and Certificate of Registration of Special Resolution, confirming the alteration of Object Clause(s) was issued by the ROC on 23.09.2024. Further, on the recommendation of the Board of Directors, the Registered Office of the Company shifted from 416, 4th Floor, DLF Qutab Plaza Complex, DLF City, Phase-I, Gurugram-122002 to 1st Floor, DLF Gateway Tower, R Block, DLF City Phase-III, Gurugram-122002 (Haryana) w.e.f. 12.07.2024. The Permanent Account Number (PAN) of the Transferor Company No. 8 is AAACU6491L and email address of the Transferor Company No. 8 is corporateaffairs@dlf.in. The equity share capital of the Transferor Company No. 8 is held by DLF Limited, Berit Builders & Developers Private Limited and Prewitt Builders & Constructions Private Limited and its nominees. The Transferor Company No. 8 is a Subsidiary Company of DLF Limited, the Holding Company, in terms of Section 2(87)(i) of the Companies Act, 2013. DLF Limited is not part of the present Scheme of Amalgamation.

xxxix. The Transferor Company No. 8 is engaged in the real estate business in terms of its Memorandum of Association. The Main Objects of Transferor Company No. 8, as set-out in Clause III of the Memorandum of Association are, as follows:

- To purchase or otherwise acquire, any land, plot(s) of land or immovable property(ies) or any right, title or interest therein either singly or jointly or in partnership with any person(s) or body corporate or partnership firm(s) and Setting up residential, commercial complexes for sale or for letting out and earning rental income there from either severally, or jointly or in partnership as aforesaid, comprising offices spaces for sale or self-use or for running business/convention centers or dealing in movable or immovable assets or Construction, Development, purchase, sell, take on lease or in exchange, hire and carry on the business of builders, civil contractors, civil engineers, decorators, surveyors, merchants and dealers in stone, sand, cement, bricks, timber, iron and steel, hardware and other building requisites, bricks and tiles and terra cotta

makers, job makers, carriers, house and estate agents.

- To purchase, take on lease or in exchange, hire or otherwise acquire right, title or interest in any movable or immovable property(ies) including residential, commercial, agricultural, farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere in India or abroad, to divide the same into plots, rent out or sell the plots to the people for building houses, bungalows, business premises and to build, construct residential houses, apartments, flats and business premises and colonies and lease, sell, transfer or dispose off the same to the public, provide after-sale service and realize cost in lump sum or easy installments or by hire purchase system or providing maintenance & allied services including safety and security of multi-storied buildings/colonies, commercial complexes, office complexes, market, shopping complexes, clubs, theatres, hospitals, factories, streets, public and private estates, cities, town, villages etc.
- To acquire by purchase, lease, exchange, or otherwise, land, buildings and hereditaments of any tenure of description situate in India or abroad, any estate or interest therein, and any rights over or connected with land so situated, and to turn the same to account as may seen expedient, and in particular by preparing building site and by constructing, reconstructing, altering, improving, decorating, finishing and maintaining offices, flats, houses, factories, warehouses, shops, retail outlets, wharves, buildings, works and conveniences of all kinds and by consolidating or connecting or sub dividing properties, and by leasing and disposing of the same or construct, execute, carryout, equip, support, maintain, operate, improve, work, develop, administer, manage, control and superintend within or outside the country anywhere in the world all kinds of works, public or otherwise, buildings, houses and other constructions.

A certified true copy of Memorandum and Articles of Association of the Transferor Company No. 8 along with master data is being annexed and marked as **ANNEXURE A-22 (COLLY).**

xl. The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 8 as on 31st March 2024 is as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORIZED SHARE CAPITAL	
5,00,000 Equity Shares of Rs. 10/- each	50,00,000.00
TOTAL	**50,00,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	
3,10,0002 Equity Shares of Rs. 10/- each fully paid-up	31,00,020.00
TOTAL	**31,00,020.00**

xli. There has been no change in the share capital structure of the Transferor Company No. 8

since 1st April 2024. The Transferor Company No. 8 has not issued any Compulsorily Convertible Debentures.

xlii. The financial position of the Transferor Company No. 8 as on 31st March 2024 and 31st March 2023 on the basis of the Audited Accounts is as under:

(Rs. in Lakhs)

PARTICULARS	AMOUNT (31.03.2024)	AMOUNT (31.03.2023)
EQUITY & LIABILITIES		
Equity Share Capital	31.00	31.00
Other Equity	53.39	51.75
Non-Current Liabilities	-	-
Current Liabilities	4,009.44	4,009.53
Total	**4,093.83**	**4,092.28**
ASSETS		
Non-Current Assets	2.42	19.70
Current Assets	4,091.41	4,072.58
Total	**4,093.83**	**4,092.28**

The certified true copy of the Audited Financial Statements of Transferor Company No. 8 as on 31st March 2024 along with unaudited financial results/Limited Review Report for the quarter ended 30th September 2024 are annexed as **ANNEXURE A-23 (COLLY).** A copy of the list of directors of the Transferor Company No. 8 is annexed as **ANNEXURE A-24**.

xliii. **HIGHVISTA BUILDCON PRIVATE LIMITED** (Formerly known as Vikram Electric Equipment Private Limited) ("**Applicant No. 9/Transferee Company**") was originally incorporated as a Private Limited Company on 30.04.1979 under the name and style of Vikram Electric Equipment Private Limited under the provisions of the Companies Act, 1956. The Transferee Company by way of Special Resolution, altered the provisions of its Memorandum of Association with respect to change of place of its Registered Office by shifting it from the State of Delhi to the State of Haryana and such alteration has been registered vide Certificate of Registration dated

13.12.2021, issued by the Registrar of Companies (ROC), NCT of Delhi & Haryana, New Delhi. Further, on the recommendation of the Board of Directors, the Registered Office of the Company shifted from 416, 4th Floor, DLF Qutab Plaza Complex, DLF City, Phase-I, Gurugram-122002 to 1st Floor, DLF Gateway Tower, R Block, DLF City Phase-III, Gurugram-122002 (Haryana) w.e.f. 12.07.2024. The Transferee Company vide Special Resolution, altered the provisions of its Memorandum of Association with respect to its Objects and Certificate of Registration of Special Resolution, confirming the alteration of Object Clause was issued by the ROC on 13.09.2024. Further, the name of the Transferee Company was changed from Vikram Electric Equipment Private Limited to Highvista Buildcon Private Limited and a fresh certificate of incorporation consequent to the change of name was issued by the ROC on 01.10.2024. The Permanent Account Number (PAN) of the Transferee Company is AABCV7648B and email address of the Transferee Company is corporateaffairs@dlf.in. The equity share capital of the Transferee Company is held by DLF Limited, Amandla Builders & Developers Private Limited, Murdock Builders & Developers Private Limited and Manini Real Estates Private Limited and its nominees. The Transferee Company is a Subsidiary Company of DLF Limited, the Holding Company, in terms of Section 2(87)(i) of the Companies Act, 2013. DLF Limited is not part of the present Scheme of Amalgamation.

xliv. The Transferee Company is engaged in the real estate business in terms of its Memorandum of Association. The Main Objects of Transferee Company, as set-out in Clause III of the Memorandum of Association are, as follows:

- To purchase or otherwise acquire, any land, plot(s) of land or immovable property(ies) or any right, title or interest therein either singly or jointly or in partnership with any person(s) or body corporate or partnership firm(s) and Setting up residential, commercial complexes for sale or for letting out and earning rental income there from either severally, or jointly or in partnership as aforesaid, comprising offices spaces for sale or self-use or for running business/convention centers or dealing in movable or

immovable assets or Construction, Development, purchase, sell, take on lease or in exchange, hire and carry on the business of builders, civil contractors, civil engineers, decorators, surveyors, merchants and dealers in stone, sand, cement, bricks, timber, iron and steel, hardware and other building requisites, bricks and tiles and terra cotta makers, job makers, carriers, house and estate agents.

- To purchase, take on lease or in exchange, hire or otherwise acquire right, title or interest in any movable or immovable property(ies) including residential, commercial, agricultural, farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere in India or abroad, to divide the same into plots, rent out or sell the plots to the people for building houses, bungalows, business premises and to build, construct residential houses, apartments, flats and business premises and colonies and lease, sell, transfer or dispose off the same to the public, provide after-sale service and realize cost in lump sum or easy installments or by hire purchase system or providing maintenance & allied services including safety and security of multi-storied buildings/colonies, commercial complexes, office complexes, market, shopping complexes, clubs, theatres, hospitals, factories, streets, public and private estates, cities, town, villages etc.
- To acquire by purchase, lease, exchange, or otherwise, land, buildings and hereditaments of any tenure of description situate in India or abroad, any estate or interest therein, and any rights over or connected with land so situated, and to turn the same to account as may seen expedient, and in particular by preparing building site and by constructing, reconstructing, altering, improving, decorating, finishing and maintaining offices, flats, houses, factories, warehouses, shops, retail outlets, wharves, buildings, works and conveniences of all kinds and by consolidating or connecting or sub dividing properties, and by leasing and disposing of the same or construct, execute, carryout, equip, support, maintain, operate, improve, work, develop, administer, manage, control and superintend within or outside the country anywhere in the world all kinds of works, public or otherwise, buildings, houses and other construction.

A certified true copy of the Memorandum and Articles of Association of the Transferee Company along with master data is being annexed and marked as **ANNEXURE A-25 (COLLY).**

xlv. The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferee Company as on 31st March 2024 is as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORIZED SHARE CAPITAL	
5,00,000 Equity Shares of Rs. 10/- each	50,00,000.00
TOTAL	**50,00,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	

4,71,080 Equity Shares of Rs. 10/- each fully paid-up	47,10,800.00
TOTAL	**47,10,800.00**

xlvi. There has been no change in the share capital structure of the Transferee Company since 1st April 2024. The Transferee Company has not issued any Compulsorily Convertible Debentures.

xlvii. The financial position of the Transferee Company as on 31st March 2024 and 31st March 2023 on the basis of the Audited Accounts is as under:

(Rs. in Lakhs)

Particulars	**Amount (31.03.2024)**	**Amount (31.03.2023)**
EQUITY & LIABILITIES		
Equity Share Capital	47.11	47.11
Other Equity	(5,640.07)	(5,274.40)
Non-Current Liabilities	-	5.55
Current Liabilities	12,631.25	12,690.22
Total	**7,038.29**	**7,468.48**
ASSETS		
Non-Current Assets	529.74	532.43
Current Assets	6,508.55	6,936.05
Total	**7,038.29**	**7,468.48**

The certified true copy of the Audited Financial Statements of Transferee Company as on 31st March 2024 along with unaudited financial results/Limited Review Report for the quarter ended 30th September 2024 are annexed as **ANNEXURE A-26 (COLLY).** A copy of the list of directors of the Transferee Company is annexed as **ANNEXURE A-27**.

xlviii. The Clause III(B)(11) of the Memorandum of Association of the Transferee Company permits and authorizes the Transferee Company to enter into the present Scheme of Amalgamation.

xlix. The Scheme of Amalgamation has been approved by the respective Board of Directors of the Applicant Companies. The certified true copies of the Board Resolutions passed by the Board of Directors of the Applicant Companies, respectively are annexed as **ANNEXURE A-29 (COLLY).**

l. The Applicant No.1/ Transferor Company No. 1 has total 7 (seven) equity shareholders. The list of equity shareholders as on 24.10.2024 of the Transferor Company No. 1 along with certificate issued by M/s P R A G S & Associates, Practicing Chartered Accountants, Delhi, certifying the list of equity shareholders are annexed as **ANNEXURE A-30 (COLLY).** The consents/ no objections of all the equity shareholders of the Transferor Company No. 1 by way of affidavits along with requisite authorizations are annexed hereto and marked as **ANNEXURE A-31 (COLLY)**.

li. The Applicant No.1/ Transferor Company No. 1 does not have secured creditors. Transferor Company No. 1 has obtained a Certificate from M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram in this regard. A copy of the said Certificate, certifying the 'Nil' list of secured creditors as on 30.09.2024 in Transferor Company No. 1 is annexed as **ANNEXURE A-32.**

lii. The Transferor Company No. 1 has 2 (two) unsecured creditors. The certificate issued by M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram, depicting the list of unsecured creditor(s) as on 30.09.2024 of the Transferor Company No. 1 is annexed as **ANNEXURE A-33**. The consents/ no objection(s) of the unsecured creditors of the Applicant No. 1/ Transferor Company No. 1 by way of affidavits along with requisite authorizations are annexed hereto and marked as **ANNEXURE A-34 (COLLY)**. The Transferor Company No. 1 has not issued any Compulsorily Convertible Debentures.

liii. The Applicant No.2/ Transferor Company No. 2 has total 7 (seven) equity shareholders. The list of equity shareholders as on 24.10.2024 of the Transferor Company No. 2 along with certificate issued by M/s P R A G S & Associates, Practicing Chartered Accountants, Delhi, certifying the list of equity shareholders are annexed as **ANNEXURE A-35 (COLLY)**.The

consents/ no objections of all the equity shareholders of the Transferor Company No. 2 by way of affidavits along with requisite authorizations are annexed as **ANNEXURE A-36 (COLLY)**.

liv. The Applicant No. 2/ Transferor Company No. 2 does not have secured creditors. The Transferor Company No. 2 has obtained a Certificate from M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram in this regard. A copy of the said Certificate certifying the 'Nil' list of secured creditors as on 30.09.2024 in Transferor Company No. 2 is annexed as **ANNEXURE A-37.**

lv. The Transferor Company No. 2 has 2 (two) unsecured creditors. The certificate issued by M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram, certifying the list of unsecured creditors as on 30.09.2024 of the Transferor Company No. 2 is annexed as **ANNEXURE A-38**. The consents/ no objections of the unsecured creditors of the Transferor Company No. 2 by way of affidavits along with requisite authorizations are annexed hereto and marked as **ANNEXURE A-39 (COLLY)**. The Transferor Company No. 2 has not issued any Compulsorily Convertible Debentures.

lvi. The Applicant No. 3/ Transferor Company No. 3 has total 7 (seven) equity shareholders.The list of equity shareholders as on 24.10.2024 of the Transferor Company No. 3 along with certificate issued by M/s P R A G S & Associates, Practicing Chartered Accountants, Delhi, certifying the list of equity shareholders are annexed as **ANNEXURE A-40 (COLLY)**. The consents/ no objections of all the equity shareholders of the Transferor Company No. 3 by way of affidavits along with requisite authorizations are annexed as **ANNEXURE A-41 (COLLY)**.

lvii. The Applicant No. 3/ Transferor Company No. 3 does not have secured creditors. The Transferor Company No. 3 has obtained a certificate from M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram in this regard. A copy of the certificate, certifying the 'Nil' list of secured

creditors as on 30.09.2024 in the Transferor Company No. 3 is annexed as **ANNEXURE A-42.**

lviii. The Transferor Company No. 3 has 2 (two) unsecured creditors. The certificate issued by M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram, certifying the list of unsecured creditors as on 30.09.2024 of the Transferor Company No. 3 is annexed as **ANNEXURE A-43**. The consents/ no objections of both the unsecured creditors of the Transferor Company No. 3 along with requisite authorizations are annexed hereto and marked as **ANNEXURE A-44 (COLLY)**. The Transferor Company No. 3 has not issued any Compulsorily Convertible Debentures.

lix. The Applicant No. 4/ Transferor Company No. 4 has total 7 (seven) equity shareholders. The list of equity shareholders as on 24.10.2024 of the Transferor Company No. 4 along with certificate issued by M/s P R A G S & Associates, Practicing Chartered Accountants, Delhi, certifying the list of equity shareholders are annexed as **ANNEXURE A-45 (COLLY)**. The consents/ no objections of all the equity shareholders of the Transferor Company No. 4 by way of affidavits along with requisite authorizations are annexed as **ANNEXURE A-46 (COLLY)**.

lx. The Applicant No. 4/ Transferor Company No. 4 does not have secured creditors. The Transferor Company No. 4 has obtained a Certificate from M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram in this regard. A copy of the Certificate, certifying the 'Nil' list of secured creditors as on 30.09.2024 in the Transferor Company No. 4 is annexed as **ANNEXURE A-47.**

lxi. The Transferor Company No. 4 has 3 (three) unsecured creditors. The certificate issued by M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram, certifying the list of unsecured creditors as on 30.09.2024 of the Transferor Company No. 4 is annexed as **ANNEXURE A-48**. The consents/ no objections of all the three unsecured creditors of the Transferor Company No. 4 along with requisite board resolutions are annexed hereto and marked as **ANNEXURE A-49**

(COLLY). The Transferor Company No. 4 has not issued any Compulsorily Convertible Debentures.

lxii. The Applicant No. 5/ Transferor Company No. 5 has total 7 (seven) equity shareholders. The list of equity shareholders as on 24.10.2024 of the Transferor Company No. 5 along with certificate issued by M/s P R A G S & Associates, Practicing Chartered Accountants, Delhi, certifying the list of equity shareholders are annexed as **ANNEXURE A-50 (COLLY)**. The consents/ no objections of all the equity shareholders of the Transferor Company No. 5 by way of affidavits along with requisite authorizations are annexed as **ANNEXURE A-51 (COLLY)**.

lxiii. The Applicant No. 5/ Transferor Company No. 5 does not have secured creditors. The Transferor Company No. 5 has obtained a Certificate from M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram in this regard. A copy of the Certificate, certifying the 'Nil' list of secured creditors as on 30.09.2024 in the Transferor Company No. 5 is annexed as **ANNEXURE A-52.**

lxiv. Transferor Company No. 5 has 2 (two) unsecured creditors. The certificate issued by M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram, certifying the list of unsecured creditors as on 30.09.2024 of the Transferor Company No. 5 is annexed as **ANNEXURE A-53**. The consents/ no objections of both the unsecured creditors of the Transferor Company No. 5 by way of affidavits along with requisite authorizations are annexed hereto and marked as **ANNEXURE A-54 (COLLY).** The Transferor Company No. 5 has not issued any Compulsorily Convertible Debentures.

lxv. The Applicant No. 6/ Transferor Company No. 6 has total 7 (seven) equity shareholders. The list of equity shareholders as on 24.10.2024 of the Transferor Company No. 6 along with certificate issued by M/s P R A G S & Associates, Practicing Chartered Accountants, Delhi, certifying the list of equity shareholders are annexed as **ANNEXURE A-55 (COLLY)**.The

consents/ no objections of all the equity shareholders of the Transferor Company No. 6 by way of affidavits along with requisite authorizations are annexed as **ANNEXURE A-56 (COLLY)**.

lxvi. The Applicant No. 6/ Transferor Company No. 6 does not have secured creditors. The Transferor Company No. 6 has obtained a Certificate from M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram in this regard. A copy of the Certificate, certifying the 'Nil' list of secured creditors as on 30.09.2024 in the Transferor Company No. 6 is annexed as **ANNEXURE A-57.**

lxvii. The Transferor Company No. 6 has 3 (three) unsecured creditors. The certificate issued by M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram, certifying the list of unsecured creditors as on 30.09.2024 of the Transferor Company No. 6 is annexed as **ANNEXURE A-58**. The consents/ no objections of all the unsecured creditors of the Transferor Company No. 6 by way of affidavits along with requisite authorizations are annexed hereto and marked as **ANNEXURE A-59 (COLLY)**. The Transferor Company No. 6 has not issued any Compulsorily Convertible Debentures.

lxviii. The Applicant No. 7/ Transferor Company No. 7 has total 7 (seven) equity shareholders. The list of equity shareholders as on 24.10.2024 of the Transferor Company No. 7 along with certificate issued by M/s P R A G S & Associates, Practicing Chartered Accountants, Delhi, certifying the list of equity shareholders are annexed as **ANNEXURE A-60 (COLLY)**. The consents/ no objections of all the equity shareholders of the Transferor Company No. 7 by way of affidavits along with requisite authorizations are annexed as **ANNEXURE A-61 (COLLY)**.

lxix. The Applicant No. 7/ Transferor Company No. 7 does not have secured creditors. The Transferor Company No. 7 has obtained a Certificate from M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram in this regard. A copy of the Certificate, certifying the 'Nil' list of secured creditors as on 30.09.2024 in the Transferor Company No. 7 is annexed as **ANNEXURE A-62.**

lxx. Transferor Company No. 7 has 2 (two) unsecured creditors. The certificate issued by M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram, certifying the list of unsecured creditors as on 30.09.2024 of the Transferor Company No. 7 is annexed as **ANNEXURE A-63**. The consents/ no objections of both the unsecured creditors of the Transferor Company No. 7 by way of affidavits along with requisite authorizations are annexed hereto and marked as **ANNEXURE A-64 (COLLY)**. The Transferor Company No. 7 has not issued any Compulsorily Convertible Debentures.

lxxi. The Applicant No. 8/ Transferor Company No. 8 has total 7 (seven) equity shareholders. The list of equity shareholders as on 24.10.2024 of the Transferor Company No. 8 along with certificate issued by M/s P R A G S & Associates, Practicing Chartered Accountants, Delhi, certifying the list of equity shareholders are annexed as **ANNEXURE A-65 (COLLY)**. The consents/ no objections of all the equity shareholders of the Transferor Company No. 8 by way of affidavits along with requisite authorizations are annexed as **ANNEXURE A-66 (COLLY)**.

lxxii. The Applicant No. 8/ Transferor Company No. 8 does not have secured creditors. The Transferor Company No. 8 has obtained a Certificate from M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram in this regard. A copy of the Certificate, certifying the 'Nil' list of secured creditors as on 30.09.2024 in the Transferor Company No. 8 is annexed as **ANNEXURE A-67.**

lxxiii. Transferor Company No. 8 has 3 (three) unsecured creditors. The certificate issued by M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram, certifying the list of unsecured creditors as on 30.09.2024 of the Transferor Company No. 8 is annexed as **ANNEXURE A-68**. The consents/ no objections of all the unsecured creditors of the Transferor Company No. 8 by way of affidavits along with requisite authorizations are annexed hereto and marked as **ANNEXURE A-69 (COLLY)**. The Transferor Company No. 8 has not issued any Compulsorily

Convertible Debentures.

lxxiv. The Applicant No. 9/ Transferee Company has total 7 (seven) equity shareholders. The list of equity shareholders as on 24.10.2024 of the Transferee Company along with certificate issued by M/s P R A G S & Associates, Practicing Chartered Accountants, Delhi, certifying the list of equity shareholders are annexed as **ANNEXURE A-70 (COLLY)**. The consents/ no objections of all the equity shareholders of the Transferee Company by way of affidavits along with requisite authorizations are annexed as **ANNEXURE A-71 (COLLY)**.

lxxv. The Applicant No. 9/ Transferee Company does not have secured creditors. The Transferee Company has obtained a Certificate from M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram in this regard. A copy of the Certificate certifying the 'Nil' list of secured creditors as on 30.09.2024 in the Transferee Company is annexed as **ANNEXURE A-72.**

lxxvi. The Transferee Company has 11 (eleven) unsecured creditors. The certificate issued by M/s Prem Arun Jain & Co., Chartered Accountants, Gurugram, certifying the list of unsecured creditors as on 30.09.2024 of the Transferee Company is annexed as **ANNEXURE A-73**. Out of total 11 unsecured creditors, 9 unsecured creditors of the Transferee Company, representing 99.43% of the total outstanding amount, have given their consents by way of affidavits and no objections to the Scheme and for dispensation of the meeting and the same is prayed for. The consents/ no objections of unsecured creditors of the Transferee Company by way of affidavits along with requisite authorizations are annexed hereto and marked as **ANNEXURE A-74 (COLLY)**. The Transferee Company has not issued any Compulsorily Convertible Debentures.

lxxvii. The present Scheme is not a Scheme of Corporate Debt Restructuring as envisaged under Section 230(2)(c) of the Companies Act, 2013 or a scheme of compromise or arrangement under Section 230 of the Companies Act, 2013 or a Scheme of Reduction in Share Capital under

Section 66 of the Companies Act, 2013.

lxxviii. Upon the Scheme becoming effective and with effect from the Appointed Date, the entire cross holding of paid-up share capital, inter-se between the Transferor Companies, shall be extinguished and stand cancelled and no equity shares shall be issued by the Transferee Company or any other consideration be paid in respect of such cancelled equity shares in accordance with law. The Transferee Company shall allot equity shares to the remaining shareholders of the Transferor Companies in accordance with the Fair Share Exchange Ratio Report dated 24.10.2024, issued by Samarth Valuation Advisory LLP, Registered Valuer (IBBI Registration No. IBBI/ RV-E/06/2021/157) having its office at 51/4, Primrose Street, Vatika City, Sector-49, Gurugram – 122018, duly adopted by the Board of Directors of the respective Applicant Companies. A copy of the said Fair Share Exchange Ratio Report dated 24.10.2024 is annexed as **ANNEXURE A-75**.

lxxix. As per the aforesaid Fair Share Exchange Ratio Report dated 24.10.2024, the Transferee Company shall issue and allot the equity shares in the following manner:

- As consideration for the amalgamation of Adoncia, Amandla, Berit, Manini, Murdock and Prewitt (Transferor Company Nos. 1, 2, 3, 5, 6 and 7) with Highvista, keeping in view the negative balance of the total assets and liabilities and cancellation of the cross holdings pursuant to the Proposed Scheme, No Equity Shares of Highvista will be issued to DLF Limited (the ultimate beneficial holder).
- As consideration for the amalgamation of Invecon (Transferor Company No. 4) with Highvista, 66 Equity Shares of Highvista of face value of Rs. 10/- per share, to be issued to shareholders of Invecon i.e DLF Limited (the ultimate beneficial holder) for every 1 Equity Share held by DLF in Invecon.

- As consideration for the amalgamation of Uni International (Transferor Company No. 8) with Highvista, 6 Equity Shares of Highvista of face value of Rs. 10/- per share, to be issued to shareholders of Uni International i.e DLF Limited (the ultimate beneficial holder) for every 01 Equity Share held by DLF in Uni International.
- Post approval of the Scheme, the share capital structure of the Transferee Company will be as under:

PARTICULARS	AMOUNT (Rs.)
AUTHORISED SHARE CAPITAL	
19,00,000 Equity Shares of Rs. 10/- each	1,90,00,000.00
25,000 Equity Shares of Rs. 100/- each	25,00,000.00
500 Preference Shares of Rs. 100/- each	50,000.00
TOTAL	**2,15,50,000.00**
ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	
1,53,692 Equity Shares of Rs. 10/- each fully paid-up	15,36,920.00
TOTAL	**15,36,920.00**

lxxx. On the Scheme coming into effect, the Transferor Company Nos. 1 to 8 shall, without any further act or deed, stand dissolved without the process of winding-up.

lxxxi. The Transferee Company undertakes that from the date of the Scheme coming into effect, to pay all legitimate claims as and when the same become due and payable in accordance with law relating to the Transferor Company Nos. 1 to 8 and the said liabilities shall, without any further act, instruments or deed, be and stand transferred to the Transferee Company, pursuant to the applicable provisions of the said Act, so as to become the debts, liabilities, duties and obligations of the Transferee Company.

lxxxii. The accounting treatment proposed in the Scheme of Amalgamation is in conformity with the

accounting standards as prescribed by the Companies Act, 2013 or the Central Government or as may be applicable on the Applicant Companies. The certificates from the Statutory Auditors of the Applicant Companies to this effect are annexed as **ANNEXURE A-76 (COLLY)**.

lxxxiii. An Affidavits for pending proceedings against all 9 Applicant Companies has been filed, attached with the Petition as **ANNEXURE A-77 (COLLY)** stating that no proceedings or investigation(s) under Sections 235 to 251 of the Companies Act, 1956 and/ or under Sections 206 to 229 of the Companies Act, 2013 are pending or instituted against any of the Applicant Companies. It is also stated in this Affidavit that no civil or criminal proceeding or proceedings with respect to Income Tax, VAT, Service Tax/ GST and Negotiable Instrument or under any law are pending on similar cause of action before any judicial and/ or quasi-judicial authority(ies) in India and/ or outside India.

lxxxiv. Applicant Nos. 1 to 9 are unlisted Public Limited Companies. The Applicant Nos. 1 to 9 are subsidiaries of DLF Limited, the ultimate Holding Company in accordance with the provisions of section 2(87)(i) of the Companies Act, 2013. The Applicant Companies are not governed by any Sectoral Regulators or Authorities which are likely to be affected by the present Scheme of Amalgamation and hence, it is not required to serve notices to them, apart from the authorities as mentioned in the present Application. The affidavits, in this regard, by the Applicant Companies are annexed as **ANNEXURE A-78 (COLLY)**.

lxxxv. It may be noted that as per the applicable law, the Applicant Companies are not required to serve notice of petition on the Competition Commission of India (CCI) and the requirement of obtaining approval from Competition Commission of India under sub-clause (2) of Section 6 of the Competition Act, 2002 is exempted vide Entry 9 to Schedule 1 in terms of Regulation 4 of the Competition Commission of India (Procedure in regard to the transaction of business relating to

combinations) Regulations, 2011, as they do not come up to the threshold prescribed under the Competition Act, 2002 (as enhanced by the Central Government vide its Notification No. Section 0.675(E) dated 4th March 2016), S.O. 988 (E) dated 27th March 2017 read with Notification No. S.O. 1192(E) dated 16th March 2022. The affidavits, in this regard, filed by the Applicant Companies are annexed as **ANNEXURE A-79 (COLLY)**.

lxxxvi. The Applicant Companies have furnished the details of the consent of the Equity Shareholders, Secured Creditors and Unsecured Creditors as follows:-

Company	**Class of Shareholders**		**Class of Creditors**			
	Equity Share-holders	**Consent**	**Secured Creditors**	**Consent**	**Unsecured Creditor**	**Consent**
Applicant Company 1	7	100%	NIL	NA	2	100%
Applicant Company 2	7	100%	NIL	NA	2	100%
Applicant Company 3	7	100%	NIL	NA	2	100%
Applicant Company 4	7	100%	NIL	NA	3	100%
Applicant Company 5	7	100%	NIL	NA	2	100%
Applicant Company 6	7	100%	NIL	NA	3	100%
Applicant Company 7	7	100%	NIL	NA	2	100%

Applicant Company 8	7	100%	NIL	NA	3	100%
Applicant Company 9	7	100%	NIL	NA	11	99.43% (9)

ANALYSIS AND FINDINGS

4. It is noted that the proposed scheme is a scheme of amalgamation under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and provides for (i) Amalgamation between the applicant companies.

5. Since this is the First Motion Application seeking order for dispensation/ convening of the meetings of shareholders/ creditors, hence the analysis has been limited to that extent only. Other issues including pending litigation would be analysed at the time of Second Motion Petition of the Applicant Companies.

DIRECTIONS

6. Accordingly, the directions of this Bench in the present case are as under:

I. In relation to Applicant Company 1:

a. The meetings of the Equity Shareholders are dispensed with keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. Since there are “NIL” Secured Creditor in Applicant Company 1, therefore there is no requirement of any meeting.

c. The meetings of two unsecured creditors of Applicant Company 1 are dispensed with as the 100% consent of both unsecured creditors has been submitted by way of affidavits.

II. In relation to Applicant Company 2:

a. The meetings of the Equity Shareholders are dispensed with keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. Since there are “NIL” Secured Creditor in Applicant Company 2, therefore there is no requirement of any meeting.

c. The meetings of two unsecured creditors of Applicant Company 2 are dispensed with as the 100% consent of both unsecured creditors has been submitted by way of affidavits.

III. In relation to Applicant Company 3:

a. The meetings of the Equity Shareholders are dispensed with, keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. Since there are “NIL” Secured Creditor in Applicant Company 3, therefore there is no requirement of any meeting.

c. The meetings of two unsecured creditors of Applicant Company 3 are dispensed with as the 100% consent of both unsecured creditors has been submitted by way of affidavits.

IV. In relation to Applicant Company 4:

a. The meetings of the Equity Shareholders are dispensed with, keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. Since there are “NIL” Secured Creditor in Applicant Company 4, therefore there is no requirement of any meeting.

c. The meetings of all unsecured creditors of Applicant Company 4 are dispensed with as the 100% consent of all unsecured creditors has been submitted by way of affidavits.

V. In relation to Applicant Company 5:

a. The meetings of the Equity Shareholders are dispensed with, keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been received by way of affidavits;

b. Since there are “NIL” Secured Creditor in Applicant Company 5, therefore there is no requirement of any meeting.

c. The meetings of two unsecured creditors of Applicant Company 5 are dispensed with as the 100% consent of both unsecured creditors has been submitted by way of affidavits.

VI. In relation to Applicant Company 6:

a. The meetings of the Equity Shareholders are dispensed with, keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. Since there are “NIL” Secured Creditor in Applicant Company 6, therefore there is no requirement of any meeting.

c. The meetings of all unsecured creditors of Applicant Company 6 are dispensed with as the 100% consent of all unsecured creditors has been submitted by way of affidavits.

VII. In relation to Applicant Company 7:

a. The meetings of the Equity Shareholders are dispensed with keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. Since there are “NIL” Secured Creditor in Applicant Company 7, therefore there is no requirement of any meeting.

c. The meetings of two unsecured creditors of Applicant Company 7 are dispensed with as the 100% consent of both unsecured creditors has been submitted by way of affidavits.

VIII. In relation to Applicant Company 8:

a. The meetings of the Equity Shareholders are dispensed with, keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. Since there are “NIL” Secured Creditor in Applicant Company 8, therefore there is no requirement of any meeting.

c. The meetings of all unsecured creditors of Applicant Company 8 are dispensed with as the 100% consent of all unsecured creditors has been submitted by way of affidavits.

IX. In relation to Applicant Company 9:

a. The meetings of the Equity Shareholders are dispensed with, keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. Since there are "NIL" Secured Creditor in Applicant Company 9, therefore there is no requirement of any meeting.

c. The meetings of all unsecured creditors of Applicant Company 9 are dispensed with as the 99.43% consent of unsecured creditors (9 out of total 11 creditors) has been submitted by way of affidavits.

7. In view of our above findings, the First Motion Application stands allowed by giving liberty to the Applicant Companies to file Second Motion Petition with a direction that the Applicant Companies shall make specific prayer for sending notices to the (a) Central Government through Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi, (b) concerned Registrar of Companies; (c) Real Estate Regulatory Authority (RERA) (d) Official Liquidator; and (e) Income Tax Authorities by disclosing the PAN numbers of all the Applicant Companies in the title of the Second Motion Petition.

Sd/-

(Ashish Verma)
Member (Technical)

Sd/-

(Harnam Singh Thakur)
Member (Judicial)

February 25, 2025
Tamanna